DOCUMENT 3 — SECTION-BY-SECTION OUTLINE (REVISION 5, FINAL)

The bill amends 9 sections, enacts 5 (in **bold**), and repeals none. Document 5 is in Ohio bill form: Section 1 (amend and enact), Section 2 (repeal of existing sections), and uncodified Sections 3–7.

Part	Subject	Sections
One	Parents start equal	3109.03, 3109.042, 3109.401
Two	The starting point; restored status	**3109.044**; 3109.04, 3109.043
Three	Only a court changes an order; service costs	**3109.045**; 3109.053
Four	Allegations must be resolved	**3109.046**
Five	Enforcement	3125.10; **3109.047**; 3109.051(K)
Six	Child support for the child	**3119.024**
Seven	Criminal interference and referral	2919.23
Eight	Transition, effective dates, totals, funding, data	Uncodified Sections 3–7

PART ONE

- **3109.03:** equality for all parents, married or not; no preference by sex or marital status.
- **3109.042:** (A) both parents are custodians once paternity or parentage is established, with no lawsuit needed; (B) status is not a schedule; (C) existing orders govern, and the parent uses the restoration motion; (D) the rape and sexual-battery bar is sex-neutral.
- **3109.401:** fit parents ordinarily determine their children's interests; the standard-schedule policy is subject to 3109.044.

PART TWO

3109.044: - (A) The 50/50 presumption at the first allocation, including temporary and 3109.12 orders; 45 percent or more of overnights. - (B) If not rebutted, a shared parenting decree; no plan needed. - (C) Not applicable to an agreement (approved unless harmful), a full-hearing protection order against the parent while in effect, or a 3109.04(C) offender. Ex parte and consent orders govern by their terms only. - (D) Rebutted only by endangerment; inability or unwillingness; distance or school; repeated denial; or a child's preference. Not by conflict, objection, self-created noncooperation, or an unfound allegation. - (E) If rebutted: written facts; time maximized; a 90-night floor with narrow exceptions. The floor is never a target or evidence of a crime. - (F) **Child's preference:** a reasoned preference of a child 12 or older, stated in the 3109.04(B) interview, is followed unless the court finds in writing it would endanger the child, is impracticable, or is not the child's own reasoned view. No child must state one; the court decides. - (G) Decision-making may be split; the status quo holds on deadlock. - (H) Safety restrictions on a preponderance; no conviction needed.

3109.04: (A) allocation follows 3109.044. **(E)(1)(c) restoration motion:** no changed circumstances or plan; granted unless violence history, immediate threat, or a statutory bar; schedule, support, and school unchanged; the first schedule motion is decided under 3109.044; a 12-month wait after denial.

3109.043: the two existing paragraphs become (A) and (B); (C) a 28-day hearing on request; (D) no inference from a temporary order.

PART THREE

3109.045: (A) **an order stays in effect until a court changes it; parents may agree to a particular deviation**; (B) no one else may reduce, suspend, supervise, condition, or substantively change it, and delegation to a non-judge is unenforceable; (C) a GAL recommendation is evidence only, with cross-examination; (D) a parenting coordinator implements only, with independent review; (E) safety plans need consent or an order; (F) emergency savings.

3109.053: (A) classes and counseling as now, without the parent-cost rule; (B) parents may agree to use and pay for services, and a requesting parent may be charged, but otherwise a court-required service is free to the non-agreeing parent, **including GALs**; (C) nonpayment never delays a hearing or restricts rights; (D) applies notwithstanding 3109.04(C), 3109.052, and 3109.055; costs, fee awards, restitution, and remedial orders preserved.

PART FOUR

3109.046: (A) definitions; (B) no restriction without an order; (C) a 90-day hearing on request; (D) the **36-month limit subject to one 45-day extension**, with a court-set hearing at 30 months, the restricted parent's delay excluded, one period for all pre-restriction conduct, and the prior order then resumes; (E) after resolution; (F) good-faith reports protected; (G) knowingly false allegations by **clear and convincing** evidence bring make-up time, fees, and a change in circumstances; (H) scope.

PART FIVE

3125.10: each CSEA is also the county's **family support enforcement agency**; its FSEA duties are non-IV-D and separately funded.

3109.047: - (A) Optional help, like support enforcement; direct contempt remains available; no custody, status, safety, contempt, or modification powers. - (B) A free complaint within 60 days; the parenting coordinator first, for 14 days, except long denials and concealment. - (C) Within 14 days: obtain the order, notify the other parent; 14 days to respond. - (D) A determination within 45 days; for each denial, **make-up time of the same type and duration**. - (E) Unclear orders and safety claims go to court as contempt. - (F) 14-day objection; a hearing decided anew within 28 days; otherwise court entry. - (G) One record per order: ordered vs. received. - (H) Referral to the prosecutor, and agency-filed contempt, after three entered denials in 12 months, 14+ consecutive days, or concealment or removal. - (I) **No fine, fee, penalty, or damages created;** other remedies preserved.

3109.051(K): (1) mandatory make-up time; (2) a 28-day hearing and prima facie case; (3) lawful excuses; (4) child refusal and reasonable efforts; (5) three findings in 24 months are a change in circumstances.

PART SIX

3119.024: - (A) Every order states **parental support** and **accountable child support**; both are child support for all purposes; neither is spousal support. - (B) **Accountable** = child care in the calculation + child-specific deviations + any amount agreed or designated on request (capped at the child's reasonable needs). The remainder is parental support. Medical support is separate. - (C) Qualifying expenditures, including child savings. - (D) An annual accounting through the FSEA: 60 days; **where, not what**; statements suffice; no itemizing or receipts; redaction; assigned support exempt. - (E) A shortfall is credited dollar for dollar against future accountable support after FSEA objection procedure; the credit is a 3119.22 deviation. - (F) **No self-help**; support already due is unchanged. - (G) Only while Ohio has continuing, exclusive jurisdiction (3115.205).

PART SEVEN

2919.23: (A)–(D) unchanged. (E) court-ordered time without excuse is "without privilege"; a reasonable reading of an unclear order is a defense; not "only civil." (F) referral: 60 days plus one 30-day extension; charge or declination; no reasons; discretion kept; a referral is not guilt; a declination is unreviewable and bars nothing.

PART EIGHT

- **Section 3:** application to pending cases; existing orders stay; transition for existing restrictions; enforcement provisions apply to new conduct.
- **Section 4: the FSEA and support components take effect one year later**; existing support orders may be restated into components without changing the total.
- **Section 5:** total support calculation unchanged.
- **Section 6:** forms; funding (state, local, and 669b where legally available; no IV-D misuse); annual data.
- **Section 7:** S.B. 174 conformity.